



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 8, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202107012 (Incident Date: November 8, 2021) regarding Police Officer Sean Costigan, Tax No. 932494 (DADS No. 2023-27970), and Police Officer Vito Andreani, Tax No. 967752 (DADS No. 2023-27969)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the officers' actions did not constitute misconduct. The CCRB had substantiated a single allegation of an improper search against both Police Officer Costigan and Police Officer Andreani.

In this matter, Police Officer Costigan and Police Officer Andreani responded to a 911 assignment concerning an individual who was believed to have made threats to harm himself and was determined to be an emotionally disturbed person (EDP). The Department's Emergency Service Unit gained access to the apartment and secured the individual in handcuffs for transportation to the hospital.

At this point, the sergeant at the scene asked the individual whether he wanted clothes and shoes to wear to the hospital, due to the fact the individual was only partially clothed and it was cold outside. After the individual replied affirmatively, Officers Costigan and Andreani located a pair of pants and a pair of shoes for the individual. Their brief entry into a closet and drawer were limited to their effort to retrieve proper clothing for the individual and was clearly performed pursuant to their community caretaking function, and not as part of a search for evidence of any crime. Finally, Officer Costigan responded to the individual's request for his apartment keys, as he was being removed from the apartment to the hospital. Officer Costigan briefly looked for, and found, the individual's keys, in order to ensure that the individual would be able to gain access to his apartment upon his release.

The Police Commissioner recognized that the actions of these officers were clearly not only within the bounds of proper conduct, but rose to the level of what should be expected from professional police officers, serving the public with courtesy and respect.

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Therefore, based on the foregoing, Police Officer Costigan and Police Officer Andreani will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 304-06 (1) (Prohibited Conduct/Wrongful Search).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office